IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III (SPECIAL BENCH)

Item No. 109
New CA-98/2024
In
CAA-121(ND)/2022

IN THE MATTER OF:
M/s. Sarvamangal Tradelinks Pvt. Ltd. With Rockland Tradelink Pvt Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230-232

Order delivered on 13.05.2024

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Amit Goel, Ms. Deepali Mittal, Advocates.
For the RD	: Ms. Jyoti Khurana, Advocate.
For the IT Dept.	: Mr. Parth Semwal, Mr. Abhishek Maratha Mr. Apoorv Agarwal; Standing Counsels

HYBRID HEARING (PHYSICAL & VC)
ORDER

New CA-98/2024:-

This application has been filed seeking rectification of order dated 05.04.2024 passed by this Tribunal.

It is submitted that the Petitioner in the petition filed under Section 230-232 seeking sanction of the scheme of amalgamation between the Transferor Companies and the Transferee Company and their respective shareholders and Creditors had prayed for the appointed date for the proposed scheme of amalgamation to be 01.04.2023.

It is also submitted that in the order dated 05.04.2024 passed by this Tribunal approving the scheme of amalgamation, the appointed date has been mentioned as 01.04.2024 instead of 01.04.2023.

Having regard to the facts and circumstances of the case, we direct the appointed date be changed from 01.04.2024 to 01.04.2023 so as to enable the Petitioner Company to take necessary steps in accordance with law.

IA **disposed of.**

Sd/-

(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
13.05.2024